

25CMCV01315 25CMCV01315

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-25

Motion: DEFENDANT ABREANNA MORALES'S MOTION TO COMPEL INDEPENDENT MEDICAL EXAMINATION OF PLAINTIFF

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Case Number: 25CMCV01315 Hearing Date: August 25, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MARICELA BAUTISTA,

Plaintiff,

vs.

RAYMOND

CALDERAZ, et al.,

Defendants.

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CASE NO: 24CMCV01315

[TENTATIVE]

ORDER RE: DEFENDANT ABREANNA MORALES'S MOTION TO COMPEL INDEPENDENT MEDICAL
EXAMINATION OF PLAINTIFF

Dept.

A

DATE:

August 25, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/28/2024

TRIAL:

01/20/2027

MOVING

PARTY: Defendant Abreanna

Morales

RESPONDING

PARTY: Plaintiff Maricela Bautista

1.

Background

This is a motor vehicle collision action. Plaintiff Maricela Bautista ("Plaintiff") alleges that on August 30, 2022, Plaintiff was a passenger in a vehicle driven by defendant Abreanna Morales. Plaintiff alleges that defendants Raymond Calderaz and Abreanna Morales negligently operated their vehicle so as to cause their vehicles to collide, causing Plaintiff personal injury.

2.

Discussion

Defendant Abreanna Morales ("Movant") moves to compel an independent medical examination ("IME") of Plaintiff. Movant contends that she noticed Plaintiff's IME on February 16, 2026, and that Plaintiff agreed to appear, but that Plaintiff subsequently relocated to Arizona and declined to proceed with the IME. Movant contends that she subsequently attempted to repeatedly notice Plaintiff's IME, but that Plaintiff has since refused to proceed with any IME in California. In opposition, Plaintiff contends that the court does not have jurisdiction to order her to appear for an IME in California and that there is no showing of good cause for the travel involved.

Under Code of Civil

Procedure § 2032.220, in any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff if the examination does not include any painful, protracted, or intrusive diagnostic test or procedure; and the examination is conducted at a location within 75 miles of the examinee's residence. A party who seeks to conduct a physical examination under other circumstances must obtain leave of the court. (Code Civ. Proc., § 2032.310.) "As a general matter, a defendant may obtain a

physical or mental examination of the plaintiff, in accordance with those provisions, if the plaintiff has placed his or her physical or mental condition in controversy." (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 258.)

The court shall grant an order to submit to an examination more than 75 miles from the examinee's residence only if the court determines that there is good cause of the travel involved and the order is conditioned on the advancement by the moving party of the reasonable expenses and costs to the examinee for travel to the place of examination. (Code Civ. Proc., § 2032.320, subd. (e).)

Defendant contends, and Plaintiff concedes, that there is good cause for an IME. However, Defendant contends that Plaintiff, after relocating to Arizona, has refused to undergo an IME in California, including an IME that had been noticed and agreed to prior to Plaintiff's relocation.

Plaintiff argues that the court, under Code of Civil Procedure § 1989, lacks jurisdiction to compel Plaintiff to attend an IME in California. Code of Civil Procedure § 1989 provides that "[a] witness... is not obliged to attend as a witness before any court, judge, justice or any other officer, unless the witness is a resident within the state at the time of service." Plaintiff cites to Toyota Motor Corp. v. Superior Court (2011) 197 Cal.App.4th 1107 for the proposition that Section 1989 applies to discovery proceedings such as depositions.

However, the court in Toyota Motor specifically notes that Section 1989 applies to deposition because a deposition must take place before an "officer," pursuant to Code of Civil Procedure § 2025.320. (Id. at p. 1113.) An IME, by contrast, is not required to take place before an "officer," nor is it required to take place before a judge or justice; rather, it must be performed by a licensed physician or other appropriate licensed health care practitioner. (Code. Civ. Proc., § 2032.020.) Plaintiff provides no authority indicating that a licensed physician constitutes an "officer" within the meaning of Section 1989. Toyota Motor is therefore inapposite. Plaintiff provides no other evidence that the court lacks jurisdiction to order Plaintiff to attend an IME in California while Plaintiff resides out of state. Moreover, § 2032.320 expressly permits the court to order Plaintiff to submit to a physical examination other than as described in § 2032.210. The court therefore determines that it has jurisdiction to order Plaintiff to attend an IME in California.

Movant contends that good cause for travel exists because Plaintiff relocated after already agreeing to an IME with Defendant's retained expert, Dr. Macyszyn, and Plaintiff's proposed alternatives would require Movant to either transport Dr. Macyszyn to Arizona or retain a new examiner already present in Arizona.

Plaintiff availed herself to the jurisdiction of the California Superior Court when she elected to file the instant action in California. Plaintiff was located in California at the time when Movant began seeking Plaintiff's IME. Plaintiff lived in California when Movant served its Amended Demand for Physical Examination on February 16, 2026, and on March 9, 2026 when she responded acknowledging her obligation to appear, and agreeing to appear before Dr. Luke Macyszyn on May 27, 2026. It does not appear from the parties' submissions that Plaintiff—after agreeing to submit to an IME—provided Movant with notice that she intended to relocate outside of California, in order to provide Movant the opportunity to proceed with the IME before Plaintiff's departure.

Moreover, there is no indication that travel would be burdensome to Plaintiff. The expense of transporting Dr. Macyszyn to Arizona, or retaining an examiner present in Arizona and subsequently, if necessary, transporting them to California to testify, would be substantially greater than the expense of transporting Plaintiff to California. Therefore, in light of the fact that Movant originally noticed an IME prior to Plaintiff's relocation, and Plaintiff agreed to that IME date before subsequently objecting after her voluntary relocation, the court finds that good cause exists to require Plaintiff to submit to an IME in California.

Although Plaintiff compares Code of Civil Procedure §§ 2032.320 and 2025.260 to argue that forum selection, as well as any other consideration present in Section 2025.260, is irrelevant to Section 2032.320 as intentionally not written in by the legislature, Section 2032.320 does not set forth any considerations whatsoever. The legislature's choice not to write considerations for what constitutes good cause for travel directly into Section 2032.320 does not mean that there are no considerations, or that any considerations set forth in another statute are

statutorily inapplicable. Instead, it is left to the court's discretion.

Plaintiff also contends

that the motion is moot because the date stated in Movant's third notice of IME has passed and Movant has since filed a fourth notice of IME. However, all four of Movant's noticed IMEs have concerned the same parties, the same physician, and the same issues. Movant's notices of IME have been reissued because Plaintiff has refused to appear. Plaintiff provides no authority showing that this moots the instant motion.

As Movant has agreed to

advance reasonable costs and expenses to Plaintiff for travel, both prongs of Section 2032.320, subd. (e) have been satisfied. The court will therefore grant Movant's motion to compel Plaintiff's IME.

As Movant does not

request sanctions in her motion, the court declines to award monetary sanctions.

3.

Conclusion

Based

on the foregoing, the court GRANTS Movant's motion to compel an independent medical examination of Plaintiff. Plaintiff is ordered to appear in person and submit to the examination before Dr. Luke Macyszyn, on September 16, 2026, at 1:45 p.m., at 16133 Ventura Blvd., Suite 700, Encino, California 91436. The examination will consist of a non-intrusive medical examination, including x-rays, if needed, of the affected body parts. No invasive procedures, injections, or laboratory tests will be performed. If Plaintiff objects to the taking of new x-rays, they must provide copies of all prior x-rays or imaging studies related to the affected areas at least five (5) business days before the examination. Plaintiff's attorney or a designated representative may attend and observe the examination in accordance with CCP § 2032.510, provided they do not interfere with or disrupt the examination. The observer may take notes.

Movant

shall advance Plaintiff reasonable expenses and costs for travel to the place of examination.

Movant is ordered to give notice.

IT IS SO ORDERED.

DATED: August 25, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court